

1.

CASE #	CASE NAME	HEARING NAME
CVRI2405844	ZAVALA-RIOS vs RODRIGUEZ	MOTION TO COMPEL DISCOVERY RESPONSES FROM DEFENDANT TO REQUESTS FOR ADMISSION [SET ONE]
CVRI2405844	ZAVALA-RIOS vs RODRIGUEZ	MOTION TO COMPEL DISCOVERY RESPONSES FROM DEFENDANT TO DEMAND FOR PRODUCTION AND INSPECTION OF DOCUMENTS AND OTHER TANGIBLE THINGS [SET ONE]
CVRI2405844	ZAVALA-RIOS vs RODRIGUEZ	MOTION TO COMPEL DISCOVERY RESPONSES FROM DEFENDANT TO SPECIAL INTERROGATORIES [SET ONE]
CVRI2405844	ZAVALA-RIOS vs RODRIGUEZ	MOTION TO COMPEL DISCOVERY RESPONSES FROM DEFENDANT TO FORM INTERROGATORIES [SET ONE]

Tentative Ruling:

Plaintiff's Motion to Compel Further Responses is denied,

Defendant served objection only responses. Verifications by a party are not required for objection only responses; an attorney's signature is sufficient. (See Code Civ. Proc., §§ 2030.250 2031.250, 2033.240.) Thus, these are not motions to compel, but rather motions to compel further responses.

A party may file a motion compelling further answers to interrogatories, requests for production, and requests for admissions if it finds that the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (Code Civ. Proc., §§ 2030.300, 2031.310, 2033.290.) Unless *notice of the motion is given within 45 days of the service* of the verified response, or any supplemental response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response. (*Id.* at §§ 2030.300(c), 2031.310(c), 2033.290(c).) Failure to comply with the discovery deadline "is only 'jurisdictional' in the sense that it renders the court without authority to rule on motions to compel other than to deny them." (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.)

Contrary to Plaintiff's assertion, the motions are untimely. Defendant electronically served his responses on 3/27/26, which results in a deadline of 5/13/26 (45 days + 2 court days). Plaintiff did not file and serve the motions until 5/27/26. Plaintiff contends Local Rule 3310 extends the deadline. Nothing in Local Rule 3310 does such—it merely requires moving documents to be filed within 10 court days after reserving the

hearing date. It does not extend the time period under the Code of Civil Procedure. Such an interpretation would conflict with the Code of Civil Procedure. “A trial court is without authority to adopt local rules or procedures that conflict with statutes or with rules of court adopted by the Judicial Council, or that are inconsistent with the Constitution or case law.” (*Elkins v. Superior Court* (2007) 41 Cal.4th 1337, 1351.)

2.

CASE #	CASE NAME	HEARING NAME
CVRI2502950	JAFFE vs PRESTIGE AUTOSPORTS GROUP INC	MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR ADMISSION (SET ONE) AND MONETARY SANCTIONS

Tentative Ruling:

Plaintiff’s Motion to Compel is denied for failure to comply with the court’s orders on 3/24/26 and 5/19/26.

Plaintiff filed the instant motion to compel further responses to his first set of request for admission on February 26, 2026. The motion was initially set for hearing to be held on March 24, 2026. Prior to the hearing, the Court ordered the hearing to be continued to May 19, 2026, for reason Plaintiff’s declaration failed to describe any effort made to engage in a reasonable and good faith attempt to meet and confer. (See Minute Order dated March 24, 2026.)

Prior to the continued hearing, the Court once again ordered the hearing to be continued to June 18, 2026, ordering Defendants to file any opposition by June 04, 2026, and Plaintiff to file a rely on or before June 09, 2026. (See Minute Order dated May 19, 2026.) It appears the continuance was ordered on the basis of the declaration filed by Defendant, noting Plaintiff’s failure to serve notice of hearing on motion to compel.

To date, Plaintiff has not complied with the Court’s February 26, 2026 order to submit supplemental declaration regarding the good faith effort to meet and confer. Moreover, Defendant failed to file an opposition by June 04, 2026. Instead, on June 09, 2026, it only filed a separate statement in opposition to the motion.

There are procedural requirements which must be met for an order compelling the further responses, including a requirement for good faith meet and confer (Code Civ. Proc., §§ 2033.290(b), 2016.040).